

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
RENE HERRERA,

Plaintiff,

Index No.:

Purchased:

-against-

CITY OF NEW YORK, TERRANCE LLOYD,
individually and officially in his capacity as New York City
detective, UNDERCOVER OFFICER NUMBER C0157
utilized under Criminal Docket Number CR-008314-19KN,
individually and officially in his/her capacity as New York
City police officer, and JOHN or JANE DOE 1-10,
individually and officially in their capacities as New York
City police officers and/or detectives,

SUMMONSPlaintiff designates **Kings County** as
the venue for trial by jury.The basis for venue is where the tort
arose.Defendants.
-----X**TO THE ABOVE-NAMED DEFENDANT:**

YOU ARE HEREBY SUMMONED, to answer the complaint in their action and to
serve a copy of your answer, or if the complaint is not served with their summons, to serve a
notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of their
summons, exclusive of the day of service (or within 30 days after the service is complete if their
summons is not personally delivered to you within the State of New York); and in case of your
failure to appear or answer, judgment will be taken against you by default for the relief
demanded in the complaint.

Dated: Bayside, New York
January 17, 2020

SIM & DEPAOLA, LLP

BY: Peter Sim, Esq.

Attorneys for Plaintiff

42-40 Bell Boulevard, Suite 201

Bayside, New York 11361

(718) 281-0400

TO: CORPORATION COUNSEL OF THE
CITY OF NEW YORK
100 Church Street
New York, New York 10007

Detective TERRANCE LLOYD
Shield # 2404, Tax Id 950760
At Brooklyn North Vice
245 Glenmore Avenue
Brooklyn, New York 11207

UNDERCOVER OFFICER NUMBER C0157
utilized under Criminal Court
Docket Number CR-008314-19KN
1 Police Plaza
New York, New York 10007

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Defendants.

-----X

Plaintiff, RENE HERRERA, by his attorneys, Sim & DePaola, LLP, for her complaint against the above Defendants, alleges as follows:

1. The claim arises from a February 28, 2019 incident in which Defendants, acting under color of state law, unlawfully assaulted, arrested and detained Plaintiff. As a result, Plaintiff was deprived of her liberty and suffered physical injuries. Plaintiff was incarcerated over the course of one (1) day, until he was released on January 10, 2019. He was maliciously prosecuted, until the dismissal of all charges except non-criminal charge of Disorderly Conduct, on March 1, 2019.
2. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

PARTIES

3. Plaintiff RENE HERRERA (“Plaintiff”) resides at 117 South 4th Street, Apt. 14, County of Kings, State of New York.

4. The Defendant City of New York (or “the City”) is a municipal corporation organized under the laws of the State of New York.

5. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or “NYPD”) was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.

6. In addition, at all times hereto relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

7. Defendant TERRANCE LLOYD was, at all times here relevant, a detective employed by the NYPD and as such was acting in the capacity of an agent, servant, and employee of the City of New York. Defendant LLOYD was, at the times relevant herein, a detective under Shield # 2404, Tax ID # 950760 located at the Brooklyn North Vice, 245 Glenmore Avenue, Brooklyn, New York 11207. Defendant LLOYD is being sued in his individual and official capacities.

8. Defendant UNDERCOVER OFFICER NUMBER C0157 utilized under Criminal Docket Number CR-8314-19KN was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant, and employee of the City of New York. Defendant UNDERCOVER OFFICER NUMBER C0157 was, at the times relevant herein,

a police officer in the NYPD. Defendant UNDERCOVER OFFICER NUMBER C0157 is being sued in his or her individual and official capacities.

9. At all times relevant Defendants, including LLOYD, UNDERCOVER OFFICER NUMBER C0157 and John and Jane Doe 1-10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At their time, Plaintiff does not know the true names and/or tax registration numbers of Defendants John and Jane Doe 1-10 but is within knowledge of the Defendants.

10. At all times relevant herein, Defendants John and Jane Doe 1-10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John and Jane Doe 1-10 are sued in their individual and official capacities.

11. At all times hereto mentioned Defendants, including LLOYD, UNDERCOVER OFFICER NUMBER C0157 and John or Jane Doe 1-10 were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

12. Within 90 days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller.

13. Over 30 days have elapsed since the filing of those notices, and their matter has not been settled or otherwise disposed of.

14. Plaintiff has complied with municipal Defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.

15. The action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

16. On February 28, 2019, at approximately 3:10 P.M., Plaintiff was inside the vicinity of Los Punkis Mini Market, 78 Thatford Avenue, County of the Kings, State of New York.

17. While Plaintiff was sitting in the back room of the Los Punkis Mini Market, he was confronted and assaulted by Defendants, including LLOYD, UNDERCOVER OFFICER NUMBER C0157 and John or Jane Doe 1-10.

18. Defendants', including LLOYD, UNDERCOVER OFFICER NUMBER C0157 and other unidentified officers, John or Jane Doe 1-10 put a gun to the Plaintiff's head, forcibly struck the Plaintiff in his face, leg, neck and shoulder.

19. At no time did Plaintiff give Defendants, including LLOYD, UNDERCOVER OFFICER NUMBER C0157 and John or Jane Doe 1-10 a reason to strike him in his face, leg, neck and shoulder.

20. At no time prior to Plaintiff being struck in his face, leg, neck and shoulder, did Defendants, including LLOYD, UNDERCOVER OFFICER NUMBER C0157 and John or Jane Doe 1-10 identify themselves as Police Officers and Detectives.

21. At no time prior to Plaintiff being kned to the neck and shoulder, violently forced to the ground , grabbed and punched in his face, causing his head to hit the stairs and bruising and swelling to his head and face, did Defendants, including LLOYD, UNDERCOVER OFFICER NUMBER C0157 and John or Jane Doe 1-10, observe Plaintiff committing a crime or violation of the law.

22. Plaintiff was searched and seized in an unlawful manner by Defendants, including LLOYD, UNDERCOVER OFFICER NUMBER C0157 and other unidentified officers, John or

Jane Doe 1-10, when they each physically grabbed and/or punching the Plaintiff's body, leg, head, neck and shoulder without probable cause and forced him to the ground.

23. While Plaintiff was on the ground, Defendants, including LLOYD, UNDERCOVER OFFICER NUMBER C0157 and other unidentified officers, John or Jane Doe 1-10 proceeded to grab, force to ground, punch and put his knee on the Plaintiff of his body.

24. Defendants, including LLOYD, UNDERCOVER OFFICER NUMBER C0157 and John or Jane Doe 1-10 had no probable cause or reasonable suspicion to arrest, detain or stop Plaintiff, as Plaintiff had not committed any crime or violation of the law.

25. Defendants, including LLOYD, UNDERCOVER OFFICER NUMBER C0157 and John or Jane Doe 1-10 fabricated a false narrative, in which they claimed Plaintiff resisted attempts by Defendants to place him under arrest, when they knew such claims to be untrue and complete fabrications.

26. Plaintiff had multiple assaults and batteries committed to his person including but not limited to being placed in handcuffs too tight and being kneed, grabbed and punched repeatedly about his body.

27. Defendants, including LLOYD, UNDERCOVER OFFICER NUMBER C0157 and John or Jane Doe 1-10 suppressed evidence and engaged in conduct undertaken in bad faith, namely fabricating false accounts that Plaintiff resisted arrest.

28. Defendants, including LLOYD, UNDERCOVER OFFICER NUMBER C0157 and John or Jane Doe 1-10 have displayed a pattern and practice of falsely accusing individuals of resisting arrest in cases where Defendants have used excessive and unreasonable force.

29. During all of the events described, the Defendants, including LLOYD, UNDERCOVER OFFICER NUMBER C0157 and John or Jane Doe 1-10 acted maliciously and with intent to injure Plaintiff.

30. At all times relevant hereto, Defendants, including LLOYD, UNDERCOVER OFFICER NUMBER C0157 and John or Jane Doe 1-10 engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when Defendants observed others doing so, all in furtherance of Plaintiff's being seriously injured.

31. As a direct and proximate result of the acts of Defendants, including LLOYD, UNDERCOVER OFFICER NUMBER C0157 and John or Jane Doe 1-10, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

32. As a direct and proximate result of their unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

33. By reason of the above, the amount of damages sought on their cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIRST CAUSE OF ACTION

Unlawful Search and Seizure Under
New York State Law

34. The above paragraphs are here incorporated by reference as though fully set forth.

35. Defendants subjected plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

36. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

37. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

38. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.

39. Accordingly, defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

40. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

41. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

Unlawful Search and Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

42. The above paragraphs are here incorporated by reference as though fully set forth.

43. Defendants subjected plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

44. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

45. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

46. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.

47. Accordingly, defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

48. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

49. The above paragraphs are here incorporated by reference as though fully set forth.

50. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.

51. Plaintiff was conscious of his confinement.

52. Plaintiff did not consent to his confinement.

53. Plaintiff's arrest and false imprisonment was not otherwise privileged.

54. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

55. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

56. The above paragraphs are here incorporated by reference as though fully set forth.

57. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

58. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

59. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

60. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

61. The above paragraphs are here incorporated by reference as though fully set forth.

62. Defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful or offensive touching.

63. Defendants engaged in and subjected plaintiff to immediate harmful or offensive touching and battered him without his consent.

64. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

65. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

66. The above paragraphs are here incorporated by reference as though fully set forth.

67. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

68. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.

69. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

70. The above paragraphs are here incorporated by reference as though fully set forth.

71. Defendants initiated the prosecution against Plaintiff.

72. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

73. Defendants acted with malice, which may be inferred in the absence of probable cause.

74. The prosecution was terminated in Plaintiff's favor, when all criminal charges were unconditionally dismissed and sealed.

75. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

76. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

77. The above paragraphs are here incorporated by reference as though fully set forth.

78. Defendants initiated the prosecution against Plaintiff.

79. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

80. Defendants acted with malice, which may be inferred in the absence of probable cause.

81. The prosecution was terminated in Plaintiff's favor, when all criminal charges were unconditionally dismissed and sealed.

82. Accordingly, Defendants violated Plaintiff's Fourteenth Amendment rights.

83. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION
Malicious Abuse of Process Under
New York State Law

84. The above paragraphs are here incorporated by reference as though fully set forth.

85. Defendants arrested, detained and caused a criminal prosecution to be initiated against plaintiff to compel the compliance or forbearance of some act.

86. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

87. Defendants intended to inflict substantial harm upon plaintiff.

88. Defendants acted to achieve a collateral purpose, beyond or in addition to plaintiff's criminal prosecution.

89. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

90. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION
Malicious Abuse of Process Under

42 U.S.C. § 1983 Against Individual Defendants

91. The above paragraphs are here incorporated by reference as though fully set forth.
92. Defendants arrested, detained and caused a criminal prosecution to be initiated against plaintiff to compel the compliance or forbearance of some act.
93. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against plaintiff, especially with the absence of any cognizable probable cause.
94. Defendants intended to inflict substantial harm upon plaintiff.
95. Defendants acted to achieve a collateral purpose, beyond or in addition to plaintiff's criminal prosecution.
96. Defendants' actions deprived plaintiff of his right to free from illegal searches and seizures, as well as his right not to be deprived of his liberty without the due process of law.
97. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTIONDenial of Right to Fair Trial Under
New York State Law

98. The above paragraphs are here incorporated by reference as though fully set forth herein.
99. Defendants fabricated false evidence to be used against plaintiff that was likely to influence a jury's decision.
100. Defendants forwarded said false information to the District Attorney's Office.
101. Defendants' actions resulted in post-arraignment deprivation to plaintiff's liberty and freedom of movement.

102. Accordingly, defendants violated plaintiff's right to a fair trial, pursuant to Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

103. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

104. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

105. The above paragraphs are here incorporated by reference as though fully set forth.

106. Defendants fabricated false evidence to be used against plaintiff that was likely to influence a jury's decision.

107. Defendants forwarded said false information to the District Attorney's Office.

108. Defendants' actions resulted in post-arraignment deprivation to plaintiff's liberty and freedom of movement.

109. Accordingly, defendants violated Plaintiff's right to a fair trial, pursuant to the Sixth and Fourteenth Amendments to United States Constitution

110. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
New York State law

111. The above paragraphs are here incorporated by reference as though fully set forth herein.

112. Plaintiff, as a Hispanic male, is a member of a racial minority and protected class.

113. Defendants discriminated against Plaintiff on the basis of his race, color or ethnicity.

114. Defendants also engaged in the selective of Plaintiff, in comparison to others similarly situated.

115. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff's exertion of his Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.

116. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

117. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiff.

118. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

119. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

120. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
42 U.S.C. §§ 1981 and 1983 Against Individual Defendants

121. The above paragraphs are here incorporated by reference as though fully set forth herein.

122. Plaintiff, as a Hispanic male, is a member of a racial minority and protected class.

123. Defendants discriminated against Plaintiff on the basis of his race, color or ethnicity

124. Defendants also selectively treated Plaintiff in comparison to others similarly situated.

125. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff's exertion of his Constitutional rights, or malicious or bad faith intent to injure Plaintiff.

126. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

127. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiff.

128. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

129. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1981, 1983, 1985 and 1986 Against Individual Defendants

130. The above paragraphs are here incorporated by reference as though fully set forth herein.

131. Defendants engaged in a conspiracy against Plaintiff to deprive Plaintiff of the equal protection of the laws, or of the privileges and immunities under the laws.

132. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.

133. Plaintiff sustained injuries to his person or was deprived of rights or privileges of citizens of the United States.

134. Defendants' conspiracy was motivated by some racial, or otherwise class-based, invidious discriminatory animus.

135. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or being committed, possessed the power to prevent or aid, and neglected to do so.

136. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Failure to Intervene Under

New York State Law

137. The above paragraphs are here incorporated by reference as though fully set forth herein.

138. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

139. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

140. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

141. The above paragraphs are here incorporated by reference as though fully set forth herein.

142. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

143. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

144. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law

145. The above paragraphs are here incorporated by reference as though fully set forth.

146. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee defendants.

147. Defendant City breached those duties of care.

148. Defendant City placed defendants in a position where they could inflict foreseeable harm.

149. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

150. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.

151. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

152. The above paragraphs are here incorporated by reference as though fully set forth.

153. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as plaintiff, to such violative behavior.

154. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

155. Defendant City and its policymakers failed to provide adequate training or supervision to their subordinates to such an extent that is tantamount to a deliberate indifference toward the rights of those who may come into contact with defendant City's employees.

156. Defendant City's employees engaged in such egregious and flagrant violations of plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by defendant City and its policymakers toward the rights of individuals, who may come into contact with defendant City's employees.

157. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

158. Defendant City's conduct caused the violation of plaintiff's civil rights, pursuant to Constitution of the United States.

159. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) In favor of Plaintiff in an amount to be determined by a jury for each of Plaintiff's causes of action;
- b) Awarding Plaintiff punitive damages in an amount to be determined by a jury;
- c) Awarding Plaintiff compensatory damages in an amount to be determined by a jury;
- d) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988; and
- e) Granting such other and further relief as this Court deems just and proper.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: January 17, 2020

Respectfully submitted,

A handwritten signature in blue ink, appearing to be 'P. Sim', is written over a horizontal line.

SIM & DEPAOLA, LLP

By: Peter Sim, Esq.

Attorneys for Plaintiff

42-40 Bell Blvd - Ste 201

Bayside, New York 11361

T: (718) 281-0400

F: (718) 631-2700

ATTORNEY VERIFICATION

I, Peter Sim, Esq, an attorney admitted to practice in the courts of New York State, state that I am an partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason their verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
January 17, 2020



PETER SIM, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

RENE HERRERA,

Plaintiff,

-against-

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Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

BY: PETER SIM

Attorney for Plaintiff

42-40 Bell Boulevard, Suite 201

Bayside, NY 11361

Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for